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Arcanum Divinae (February 10, 1880)

ARCANUM ENCYCLICAL OF POPE LEO XIII ON CHRISTIAN MARRIAGE

To the Patriarchs, Primates, Archbishops, and Bishops of the CatholicWorld in Grace and Communion with the Apostolic See.

The hidden design of the divine wisdom, which Jesus Christ the Saviour of men came to carry out on earth, had this end in view, that, by Himself and in Himself, He should divinely renew the world, which was sinking, as it were, with length of years into decline. The Apostle Paul summed this up in words of dignity and majesty when he wrote to the Ephesians, thus: "That He might make known unto us the mystery of His will... to re-establish all things in Christ that are in heaven and on earth."(1)

2. In truth, Christ our Lord, setting Himself to fulfill the commandment which His Father had given Him, straightway imparted a new form and fresh beauty to all things, taking away the effects of their time-worn age. For He healed the wounds which the sin of our first father had inflicted on the human race; He brought all men, by nature children of wrath, into favor with God; He led to the light of truth men wearied out by longstanding errors; He renewed to every virtue those who were weakened by lawlessness of every kind; and, giving them again an inheritance of neverending bliss, He added a sure hope that their mor tal and perishable bodies should one day be partakers of immortality and of the glory of heaven. In order that these unparalleled benefits might last as long as men should be found on earth, He entrusted to His Church the continuance of His work; and, looking to future times, He commanded her to set in order whatever might have become deranged in human society, and to restore whatever might have fallen into ruin.

3. Although the divine renewal we have spoken of chiefly and directly affected men as constituted in the supernatural order of grace, nevertheless some of its precious and salutary fruits were also bestowed abundantly in the order of nature. Hence, not only individual men, but also the whole mass of the human race, have in every respect received no small degree of worthiness. For, so soon as Christian order was once established in the world, it became possible for all men, one by one, to learn what God's fatherly providence is, and to dwell in it habitually, thereby fostering that hope of heavenly help which never confoundeth. From all this outflowed fortitude, self-control, constancy, and the evenness of a peaceful mind, together with many high virtues and noble deeds.

4. Wondrous, indeed, was the extent of dignity, steadfastness, and goodness which thus

accrued to the State as well as to the family. The authority of rulers became more just and revered; the obedience of the people more ready and unforced; the union of citizens closer; the rights of dominion more secure. In very truth, the Christian religion thought of and provided for all things which are held to be advantageous in a State; so much so, indeed, that, according to St. Augustine, one cannot see how it could have offered greater help in the matter of living well and happily, had it been instituted for the single object of procuring or increasing those things which contributed to the conveniences or advantages of this mortal life.

5. Still, the purpose We have set before Us is not to recount, in detail, benefits of this kind; Our wish is rather to speak about that family union of which marriage is the beginning and the foundation. The true origin of marriage, venerable brothers, is well known to all. Though revilers of the Christian faith refuse to acknowledge the never-interrupted doctrine of the Church on this subject, and have long striven to destroy the testimony of all nations and of all times, they have nevertheless failed not only to quench the powerful light of truth, but even to lessen it. We record what is to all known, and cannot be doubted by any, that God, on the sixth day of creation, having made man from the slime of the earth, and having breathed into his face the breath of life, gave him a companion, whom He miraculously took from the side of Adam when he was locked in sleep. God thus, in His most far-reaching foresight, decreed that this husband and wife should be the natural beginning of the human race, from whom it might be propagated and preserved by an unfailing fruitfulness throughout all futurity of time. And this union of man and woman, that it might answer more fittingly to the infinite wise counsels of God, even from the beginning manifested chiefly two most excellent properties - deeply sealed,

as it were, and signed upon it-namely, unity and perpetuity. From the Gospel we see clearly that this doctrine was declared and openly confirmed by the divine authority of Jesus Christ. He bore witness to the Jews and to His Apostles that marriage, from its institution, should exist between two only, that is, between one man and one woman; that of two they are made, so to say, one flesh; and that the marriage bond is by the will of God so closely and strongly made fast that no man may dissolve it or

render it asunder. "For this cause shall a man leave father and mother, and shall cleave to his wife, and they two shall be in one flesh. Therefore now they are not two, but one flesh. What, therefore, God bath joined together, let no man put asunder."(2)

6. This form of marriage, however, so excellent and so pre-eminent, began to be corrupted by degrees, and to disappear among the heathen; and became even among the Jewish race clouded in a measure and obscured. For in their midst a common custom was gradually introduced, by which it was accounted as lawful for a man to have more than one wife; and eventually when "by reason of the hardness of their heart,"(3) Moses indulgently permitted them to put away their wives, the way was open to divorce.

7. But the corruption and change which fell on marriage among the Gentiles seem almost incredible, inasmuch as it was exposed in every land to floods of error and of the most shameful lusts. All nations seem, more or less, to have forgotten the true notion and origin of marriage; and thus everywhere laws were enacted with reference to marriage, prompted to all appearance by State reasons, but not such as nature required. Solemn rites, invented at will of the law-givers, brought about that women should, as might be, bear either the honorable name of wife or the disgraceful name of concubine; and things came to such a pitch that permission to marry, or the refusal of the permission, depended on the will of the heads of the State, whose laws were greatly against equity or even to the highest degree unjust. Moreover, plurality of wives and husbands, as well as divorce, caused the nuptial bond to be relaxed exceedingly. Hence, too, sprang up the greatest confusion as to the mutual rights and duties of husbands and wives, inasmuch as a man assumed right of dominion over his wife, ordering her to go about her business, often without any just cause; while he was himself at liberty "to run headlong with impunity into lust, unbridled and unrestrained, in houses of ill-fame and amongst his female slaves, as if the dignity of the persons sinned with, and not the will of the sinner, made the guilt."(4) When the licentiousness of a husband thus showed itself, nothing could be more piteous than the wife, sunk so low as to be all but reckoned as a means for the gratification of passion, or for the production of offspring. Without any feeling of shame, marriageable girls were

bought and sold, tike so much merchandise,(5) and power was sometimes given to the father and to the husband to inflict capital punishment on the wife. Of necessity, the offspring of such marriages as these were either reckoned among the stock in trade of the common-wealth or held to be the property of the father of the family;(6) and the law permitted him to make and unmake the marriages of his children at his mere will, and even to exercise against them the monstrous power of life and death.

8. So manifold being the vices and so great the ignominies with which marriage was defiled, an alleviation and a remedy were at length bestowed from on high. Jesus Christ, who restored our human dignity and who perfected the Mosaic law, applied early in His ministry no little solicitude to the question of marriage. He ennobled the marriage in Cana of Galilee by His presence, and made it memorable by the first of the miracles which he wrought;(7) and for this reason, even from that day forth, it seemed as if the beginning of new holiness had been conferred on human marriages. Later on He brought back matrimony to the nobility of its primeval origin by condemning the customs of the Jews in their abuse of the plurality of wives and of the power of giving bills of divorce; and still more by commanding most strictly that no one should dare to dissolve that union which God Himself had sanctioned by a bond perpetual. Hence, having set aside the difficulties which were adduced from the law of Moses, He, in character of supreme Lawgiver, decreed as follows concerning husbands and wives, "I say to you, that whosoever shall put away his wife, except it be for fornication, and shall marry another, committeth adultery; and he that shall marry her that is put away committeth adultery."(8)

9. But what was decreed and constituted in respect to marriage by the authority of God has been more fully and more clearly handed down to us, by tradition and the written Word, through the Apostles, those heralds of the laws of God. To the Apostles, indeed, as our masters, are to be referred the doctrines which "our holy Fathers, the Councils, and the Tradition of the Universal Church have always taught,"(9) namely, that Christ our Lord raised marriage to the dignity of a

sacrament; that to husband and wife, guarded and strengthened by the heavenly grace which His merits gained for them, He gave power to attain holiness in the married state; and that, in a wondrous way, making marriage an example of the mystical union between Himself and His Church, He not only perfected that love which is according to nature,(10) but also made the naturally indivisible union of one man with one woman far more perfect through the bond of heavenly love. Paul says to the Ephesians: "Husbands, love your wives, as Christ also loved the Church, and delivered Himself up for it, that He might sanctify it. . . So also ought men to love their wives as their own bodies. . . For no man ever hated his own flesh, but nourisheth and cherisheth it, as also Christ doth the Church; because we are members of His body, of His flesh, and of His bones. For this cause shall a man leave his father and mother, and shall cleave to his wife, and they shall be two in one flesh. This is a great sacrament; but I speak in Christ and in the Church."(11) In like manner from the teaching of the Apostles we learn that the unity of marriage and its perpetual indissolubility, the indispensable conditions of its very origin, must, according to the command of Christ, be holy and inviolable without exception. Paul says again: "To them that are married, not I, but the Lord commandeth that the wife depart not from her husband; and if she depart, that she remain unmarried or be reconciled to her husband."(12) And again: "A woman is bound by the law as long as her husband liveth; but if her husband die, she is at liberty."(13) It is for these reasons that marriage is "a great sacrament";(14) "honorable in all,"(15) holy, pure, and to be reverenced as a type and symbol of most high mysteries.

10. Furthermore, the Christian perfection and completeness of marriage are not comprised in those points only which have been mentioned. For, first, there has been vouchsafed to the marriage union a higher and nobler purpose than was ever previously given to it. By the command of Christ, it not only looks to the propagation of the human race, but to the bringing forth of children for the Church, "fellow citizens with the saints, and the domestics of God";(16) so that "a people might be born and brought up for the worship and religion of the true God and our Saviour Jesus Christ."(17)

11. Secondly, the mutual duties of husband and wife have been defined, and their several rights accurately established. They are bound, namely, to have such feelings for one another as to

cherish always very great mutual love, to be ever faithful to their marriage vow, and to give one another an unfailing and unselfish help. The husband is the chief of the family and the head of the wife. The woman, because she is flesh of his flesh, and bone of his bone, must be subject to her husband and obey him; not, indeed, as a servant, but as a companion, so that her obedience shall be wanting in neither honor nor dignity. Since the husband represents Christ, and since the wife represents the Church, let there always be, both in him who commands and in her who obeys, a heaven-born love guiding both in their respective duties. For "the husband is the head of the wife; as Christ is the head of the Church. . . Therefore, as the Church is subject to Christ, so also let wives be to their husbands in all things."(18)

12. As regards children, they ought to submit to the parents and obey them, and give them honor for conscience' sake; while, on the other hand, parents are bound to give all care and watchful thought to the education of their offspring and their virtuous bringing up: "Fathers,... bring them up" [that is, your children] "in the discipline and correction of the Lord."(19) From this we see clearly that the duties of husbands and wives are neither few nor light; although to married people who are good these burdens become not only bearable but agreeable, owing to the strength which they gain through the sacrament.

13. Christ, therefore, having renewed marriage to such and so great excellence, commended and entrusted all the discipline bearing upon these matters to His Church. The Church, always and everywhere, has so used her power with reference to the marriages of Christians that men have seen clearly how it belongs to her as of native right; not being made hers by any human grant, but given divinely to her by the will of her Founder. Her constant and watchful care in guarding marriage, by the preservation of its sanctity, is so well understood as to not need proof. That the judgment of the Council of Jerusalem reprobated licentious and free love,(20) we all know; as also that the incestuous Corinthian was condemned by the authority of blessed Paul.(21) Again, in the very beginning of the Christian Church were repulsed and defeated, with the like unremitting determination, the efforts of many who aimed at the destruction of Christian marriage,

such as the Gnostics, Manichaeans, and Montanists; and in our own time Mormons, St. Simonians, phalansterians, and communists.(22)

14. In like manner, moreover, a law of marriage just to all, and the same for all, was enacted by the abolition of the old distinction between slaves and free-born men and women; 'and thus the rights of husbands and wives were made equal: for, as St. Jerome says, "with us that which is unlawful for women is unlawful for men also, and the same restraint is imposed on equal conditions."(23) The self-same rights also were firmly established for reciprocal affection and for the interchange of duties; the dignity of the woman was asserted and assured; and it was forbidden to the man to inflict capital punishment for adultery,(25) or lustfully and shamelessly to violate his plighted faith.

15. It is also a great blessing that the Church has limited, so far as is needful, the power of fathers of families, so that sons and daughters, wishing to marry, are not in any way deprived of their rightful freedom; (26) that, for the purpose of spreading more widely the supernatural love of husbands and wives, she has decreed marriages within certain degrees of consanguinity or affinity to be null and void;(27) that she has taken the greatest pains to safeguard marriage, as much as is possible, from error and violence and deceit; (28) that she has always wished to preserve the holy chasteness of the marriage bed, the security of persons,(29) the honor of husband and wife,(30) and the sanctity of religion.(31) Lastly, with such foresight of legislation has the Church guarded its divine institution that no one who thinks rightfully of these matters can fail to see how, with regard to marriage, she is the best guardian and defender of the human race; and how, withal, her wisdom has come forth victorious from the lapse of years, from the assaults of men, and from the countless changes of public events.

16. Yet, owing to the efforts of the archenemy of mankind, there are persons who, thanklessly casting away so many other blessings of redemption, despise also or utterly ignore the restoration of marriage to its original perfection. It is a reproach to some of the ancients that they showed themselves the enemies of marriage in many ways; but in our own age, much more pernicious is the sin of those who would fain pervert utterly the nature of marriage, perfect though it

is, and complete in all its details and parts. The chief reason why they act in this way is because very many, imbued with the maxims of a false philosophy and corrupted in morals, judge nothing so unbearable as submission and obedience; and strive with all their might to bring about that not only individual men, but families, also-indeed, human society itself-may in haughty pride despise the sovereignty of God.

17. Now, since the family and human society at large spring from marriage, these men will on no account allow matrimony to be the subject of the jurisdiction of the Church. Nay, they endeavor to deprive it of all holiness, and so bring it within the contracted sphere of those rights which, having been instituted by man, are ruled and administered by the civil jurisprudence of the community. Wherefore it necessarily follows that they attribute all power over marriage to civil rulers, and allow none whatever to the Church; and, when the Church exercises any such power, they think that she acts either by favor of the civil authority or to its injury. Now is the time, they say, for the heads of the State to vindicate their rights unflinchingly, and to do their best to settle all that relates to marriage according as to them seems good.

18. Hence are owing civil marriages, commonly so called; 'hence laws are framed which impose impediments to marriage; hence arise judicial sentences affecting the marriage contract, as to whether or not it have been rightly made. Lastly, all power of prescribing and passing judgment in this class of cases is, as we see, of set purpose denied to the Catholic Church, so that no regard is paid either to her divine power or to her prudent laws. Yet, under these, for so many centuries, have the nations lived on whom the light of civilization shone bright with the wisdom of Christ Jesus.

19. Nevertheless, the naturalists,(32) as well as all who profess that they worship above all things the divinity of the State, and strive to disturb whole communities with such wicked doctrines, cannot escape the charge of delusion. Marriage has God for its Author, and was from the very beginning a kind of foreshadowing of the Incarnation of His Son; and therefore there abides in it a something holy and religious; not extraneous, but innate; not derived from men, but implanted by nature. Innocent III, therefore, and Honorius III,

our predecessors, affirmed not falsely nor rashly that a sacrament of marriage existed ever amongst the faithful and unbelievers.(33) We call to witness the monuments of antiquity, as also the manners and customs of those people who, being the most civilized, had the greatest knowledge of law and equity. In the minds of all of them it was a fixed and foregone conclusion that, when marriage was thought of, it was thought of as conjoined with religion and holiness. Hence, among those, marriages were commonly celebrated with religious ceremonies, under the authority of pontiffs, and with the ministry of priests. So mighty, even in the souls ignorant of heavenly doctrine, was the force of nature, of

the remembrance of their origin, and of the conscience of the human race. As, then, marriage is holy by its own power, in its own nature, and of itself, it ought not to be regulated and administered by the will of civil rulers, but by the divine authority of the Church, which alone in sacred matters professes the office of teaching.

20 . Next, the dignity of the sacrament must be considered, for through addition of the sacrament the marriages of Christians have become far the noblest of all matrimonial unions. But to decree and ordain concerning the sacrament is, by the will of Christ Himself, so much a part of the power and duty of the Church that it is plainly absurd to maintain that even the very smallest fraction of such power has been transferred to the civil ruler.

21. Lastly should be borne in mind the great weight and crucial test of history, by which it is plainly proved that the legislative and judicial authority of which We are speaking has been freely and constantly used by the Church, even in times when some foolishly suppose the head of the State either to have consented to it or connived at it. It would, for instance, be incredible and altogether absurd to assume that Christ our Lord condemned the long-standing practice of polygamy and divorce by authority delegated to Him by the procurator of the province, or the principal ruler of the Jews. And it would be equally extravagant to think that, when the Apostle Paul taught that divorces and incestuous marriages were not lawful, it was because Tiberius, Caligula, and Nero agreed with him or secretly commanded him so to teach. No man in his senses could ever be persuaded that the Church

made so many laws about the holiness and indissolubility of marriage,(34) and the marriages of slaves with the free-born,(35) by power received from Roman emperors, most hostile to the Christian name, whose strongest desire was to destroy by violence and murder the rising Church of Christ. Still less could anyone believe this to be the case, when the law of the Church was sometimes so divergent from the civil law that Ignatius the Martyr,(36) Justin,(37) Athenagoras,(38) and Tertullian(39) publicly denounced as unjust and adulterous certain marriages which had been sanctioned by imperial law.

22. Furthermore, after all power had devolved upon the Christian emperors, the supreme pontiffs and bishops assembled in council persisted with the same independence and consciousness of their right in commanding or forbidding in regard to marriage whatever they judged to be profitable or expedient for the time being, however much it might seem to be at variance with the laws of the State. It is well known that, with respect to the impediments arising from the marriage bond, through vow, disparity of worship, blood relationship, certain forms of crime, and from previously plighted troth, many decrees were issued by the rulers of the Church at the Councils of Granada,(40) Arles,(41) Chalcedon,(42) the second of Milevum,(43) and others, which were often widely different from the decrees sanctioned by the laws of the empire. Furthermore, so far were Christian princes from arrogating any power in the matter of Christian marriage that they on the contrary acknowledged and declared that it belonged exclusively in all its fullness to the Church. In fact, Honorius, the younger Theodosius, and Justinian,(44) also, hesitated not to confess that the only power belonging to them in relation to marriage was that of acting as guardians and defenders of the holy canons. If at any time they enacted anything by their edicts concerning impediments of marriage, they voluntarily explained the reason, affirming that they took it upon themselves so to act, by leave and authority of the Church,(45) whose judgment they were wont to appeal to and reverently to accept in all questions that concerned legitimacy(46) and divorce;(47) as also in all those points which in any way have a necessary connection with the marriage bond.(48) The Council of Trent, therefore, had the clearest right to define that it is in the Church's power "to establish diriment impediments of matrimony,"(49) and that "matrimonial causes pertain to ecclesiastical judges."(50)

23. Let no one, then, be deceived by the distinction which some civil jurists have so strongly insisted upon - the distinction, namely, by virtue of which they sever the matrimonial contract from the sacrament, with intent to hand over the contract to the power and will of the rulers of the State, while reserving questions concerning the sacrament of the Church. A distinction, or rather severance, of this kind cannot be approved; for certain it is that in Christian marriage the contract is inseparable from the sacrament, and that, for this reason, the contract cannot be true and legitimate without being a sacrament as well. For Christ our Lord added to marriage the dignity of a sacrament; but marriage is the contract itself, whenever that contract is lawfully concluded.

24. Marriage, moreover, is a sacrament, because it is a holy sign which gives grace, showing forth an image of the mystical nuptials of Christ with the Church. But the form and image of these nuptials is shown precisely by the very bond of that most close union in which man and woman are bound together in one; which bond is nothing else but the

marriage itself. Hence it is clear that among Christians every true marriage is, in itself and by itself, a sacrament; and that nothing can be further from the truth than to say that the sacrament is a certain added ornament, or outward endowment, which can be separated and torn away from the contract at the caprice of man. Neither, therefore, by reasoning can it be shown, nor by any testimony of history be proved, that power over the marriages of Christians has ever lawfully been handed over to the rulers of the State. If, in this matter, the right of anyone else has ever been violated, no one can truly say that it has been violated by the Church. Would that the teaching of the naturalists, besides being full of falsehood and injustice, were not also the fertile source of much detriment and calamity! But it is easy to see at a glance the greatness of the evil which unhallowed marriages have brought, and ever will bring, on the whole of human society.

25. From the beginning of the world, indeed, it was divinely ordained that things instituted by God and by nature should be proved by us to be the more profitable and salutary the more they remain unchanged in their full integrity. For God,

the Maker of all things, well knowing what was good for the institution and preservation of each of His creatures, so ordered them by His will and mind that each might adequately attain the end for which it was made. If the rashness or the wickedness of human agency venture to change or disturb that order of things which has been constituted with fullest foresight, then the designs of infinite wisdom and usefulness begin either to be hurtful or cease to be profitable, partly because through the change undergone they have lost their power of benefiting, and partly because God chooses to inflict punishment on the pride and audacity of man. Now, those who deny that marriage is holy, and who relegate it, striped of all holiness, among the class of common secular things, uproot thereby the foundations of nature, not only resisting the designs of Providence, but, so far as they can, destroying the order that God has ordained. No one, therefore, should wonder if from such insane and impious attempts there spring up a crop of evils pernicious in the highest degree both to the salvation of souls and to the safety of the commonwealth.

26. If, then, we consider the end of the divine institution of marriage, we shall see very clearly that God intended it to be a most fruitful source of individual benefit and of public welfare, Not only, in strict truth, was marriage instituted for the propagation of the human race, but also that the lives of husbands and wives might be made better and happier. This comes about in many ways: by their lightening each other's burdens through mutual help; by constant and faithful love; by having all their possessions in common; and by the heavenly grace which flows from the sacrament. Marriage also can do much for the good of families, for, so long as it is conformable to nature and in accordance with the counsels of God, it has power to strengthen union of heart in the parents; to secure the holy education of children; to temper the authority of the father by the example of the divine authority; to render children obedient to their parents and servants obedient to their masters. From such marriages as these the State may rightly expect a race of citizens animated by a good spirit and filled with reverence and love for God, recognizing it their duty to obey those who rule justly and lawfully, to love all, and to injure no one.

27. These many and glorious fruits were ever the product of marriage, so long as it retained

those gifts of holiness, unity, and indissolubility from which proceeded all its fertile and saving power; nor can anyone doubt but that it would always have brought forth such fruits, at all times and in all places, had it been under the power and guardianship of the Church, the trustworthy preserver and protector of these gifts. But, now, there is a spreading wish to supplant natural and divine law by human law; and hence has begun a gradual extinction of that most excellent ideal of marriage which nature herself had impressed on the soul of man, and sealed, as it were, with her own seal; nay, more, even in Christian marriages this power, productive of so great good, has been weakened by the sinfulness of man. Of what advantage is it if a state can institute nuptials estranged from the Christian religion, which is the mother of all good, cherishing all sublime virtues, quickening and urging us to everything that is the glory of a lofty and generous soul? When the Christian religion is reflected and repudiated, marriage sinks of necessity into the slavery of man's vicious nature and vile passions, and finds but little protection in the help of natural goodness. A very torrent of evil has flowed from this source, not only into private families, but also into States. For, the salutary fear of God being removed, and there being no longer that refreshment in toil which is nowhere more abounding than in the Christian religion, it very often happens, as indeed is natural, that the mutual services and duties of marriage seem almost unbearable; and thus very many yearn for the loosening of the tie which they believe to be woven by human law and of their own will, whenever incompatibility of temper, or quarrels, or the violation of the marriage vow, or mutual consent, or other reasons induce them to think that it would be well to be set free. Then, if they are hindered by law from carrying out this

shameless desire, they contend that the laws are iniquitous, inhuman, and at variance with the rights of free citizens; adding that every effort should be made to repeal such enactments, and to introduce a more humane code sanctioning divorce.

28. Now, however much the legislators of these our days may wish to guard themselves against the impiety of men such as we have been speaking of, they are unable to do so, seeing that they profess to hold and defend the very same principles of jurisprudence; and hence they have

to go with times, and render divorce easily obtainable. History itself shows this; for, to pass over other instances, we find that, at the close of the last century, divorces were sanctioned by law in that upheaval or, rather, as it might be called, conflagration in France, when society was wholly degraded by the abandoning of God. Many at the present time would fain have those laws reenacted, because they wish God and His Church to be altogether exiled and excluded from the midst of human society, madly thinking that in such laws a final remedy must be sought for that moral corruption which is advancing with rapid strides.

29. Truly, it is hardly possible to describe how great are the evils that flow from divorce. Matrimonial contracts are by it made variable; mutual kindness is weakened; deplorable inducements to unfaithfulness are supplied; harm is done to the education and training of children; occasion is afforded for the breaking up of homes; the seeds of dissension are sown among families; the dignity of womanhood is lessened and brought low, and women run the risk of being deserted after having ministered to the pleasures of men. Since, then, nothing has such power to lay waste families and destroy the mainstay of kingdoms as the corruption of morals, it is easily seen that divorces are in the highest degree hostile to the prosperity of families and States, springing as they do from the depraved morals of the people, and, as experience shows us, opening out a way to every kind of evil-doing in public and in private life.

30. Further still, if the matter be duly pondered, we shall clearly see these evils to be the more especially dangerous, because, divorce once being tolerated, there will be no restraint powerful enough to keep it within the bounds marked out or presurmised. Great indeed is the force of example, and even greater still the might of passion. With such incitements it must needs follow that the eagerness for divorce, daily spreading by devious ways, will seize upon the minds of many like a virulent contagious disease, or like a flood of water bursting through every barrier. These are truths that doubtlessly are all clear in themselves, but they will become clearer yet if we call to mind the teachings of experience. So soon as the road to divorce began to be made smooth by law, at once quarrels, jealousies, and judicial separations largely increased; and such shamelessness of life

followed that men who had been in favor of these divorces repented of what they had done, and feared that, if they did not carefully seek a remedy by repealing the law, the State itself might come to ruin. The Romans of old are said to have shrunk with horror from the first example of divorce, but ere long all sense of decency was blunted in their soul; the meager restraint of passion died out, and the marriage vow was so often broken that what some writers have affirmed would seem to be true-namely, women used to reckon years not by the change of consuls, but of their husbands. In like manner, at the beginning, Protestants allowed legalized divorces in certain although but few cases, and yet from the affinity of circumstances of like kind, the number of divorces increased to such extent in Germany, America, and elsewhere that all wise thinkers deplored the boundless corruption of morals, and judged the recklessness of the laws to be simply intolerable.

31. Even in Catholic States the evil existed. For whenever at any time divorce was introduced, the abundance of misery that followed far exceeded all that the framers of the law could have foreseen. In fact, many lent their minds to contrive all kinds of fraud and device, and by accusations of cruelty, violence, and adultery to feign grounds for the dissolution of the matrimonial bond of which they had grown weary; and all this with so great havoc to morals that an amendment of the laws was deemed to be urgently needed.

32. Can anyone, therefore, doubt that laws in favor of divorce would have a result equally baneful and calamitous were they to be passed in these our days? There exists not, indeed, in the projects and enactments of men any power to change the character and tendency with things have received from nature. Those men, therefore, show but little wisdom in the idea they have formed of the well-being of the commonwealth who think that the inherent character of marriage can be perverted with impunity; and who, disregarding the sanctity of religion and of the sacrament, seem to wish to

degrade and dishonor marriage more basely than was done even by heathen laws. Indeed, if they do not change their views, not only private families, but all public society, will have unceasing cause to fear lest they should be miserably driven into that general confusion and overthrow of order which is even now

the wicked aim of socialists and communists. Thus we see most clearly how foolish and senseless it is to expect any public good from divorce, when, on the contrary, it tends to the certain destruction of society.

33. It must consequently be acknowledged that the Church has deserved exceedingly well of all nations by her ever watchful care in guarding the sanctity and the indissolubility of marriage. Again, no small amount of gratitude is owing to her for having, during the last hundred years, openly denounced the wicked laws which have grievously offended on this particular subject; (51) as well as for her having branded with anathema the baneful heresy obtaining among Protestants touching divorce and separation;(52) also, for having in many ways condemned the habitual dissolution of marriage among the Greeks;(53) for having declared invalid all marriages contracted upon the understanding that they may be at some future time dissolved;(54) and, lastly, for having, from the earliest times, repudiated the imperial laws which disastrously favored divorce.(55)

34. As often, indeed, as the supreme pontiffs have resisted the most powerful among rulers, in their threatening demands that divorces carried out by them should be confirmed by the Church, so often must we account them to have been contending for the safety, not only of religion, but also of the human race. For this reason all generations of men will admire the proofs of unbending courage which are to be found in the decrees of Nicholas I against Lothair; of Urban II and Paschal II against Philip I of France; of Celestine III and Innocent III against Alphonsus of Leon and Philip II of France; of Clement VII and Paul III against Henry VIII; and, lastly, of Pius VII, that holy and courageous pontiff, against Napoleon I, when at the height of his prosperity and in the fullness of his power. This being so, all rulers and administrators of the State who are desirous of following the dictates of reason and wisdom, and anxious for the good of their people, ought to make up their minds to keep the holy laws of marriage intact, and to make use of the proffered aid of the Church for securing the safety of morals and the happiness of families, rather than suspect her of hostile intention and falsely and wickedly accuse her of violating the civil law.

35. They should do this the more readily because the Catholic Church, though powerless in any way to abandon the duties of her office or

the defence of her authority, still very greatly inclines to kindness and indulgence whenever they are consistent with the safety of her rights and the sanctity of her duties. Wherefore she makes no decrees in relation to marriage without having regard to the state of the body politic and the condition of the general public; and has besides more than once mitigated, as far as possible, the enactments of her own laws when there were just and weighty reasons. Moreover, she is not unaware, and never calls in doubt, that the sacrament of marriage, being instituted for the preservation and increase of the human race, has a necessary relation to circumstances of life which, though connected with marriage, belong to the civil order, and about which the State rightly makes strict inquiry and justly promulgates decrees.

36. Yet, no one doubts that Jesus Christ, the Founder of the Church, willed her sacred power to be distinct from the civil power, and each power to be free and unshackled in its own sphere: with this condition, however - a condition good for both, and of advantage to all men - that union and concord should be maintained between them; and that on those questions which are, though in different ways, of common right and authority, the power to which secular matters have been entrusted should happily and becomingly depend on the other power which has in its charge the interests of heaven. In such arrangement and harmony is found not only the best line of action for each power, but also the most opportune and efficacious method of helping men in all that pertains to their life here, and to their hope of salvation hereafter. For, as We have shown in former encyclical letters,(56) the intellect of man is greatly ennobled by the Christian faith, and made better able to shun and banish all error, while faith borrows in turn no little help from the intellect; and in like manner, when the civil power is on friendly terms with the sacred authority of the Church, there accrues to both a great increase of usefulness. The dignity of the one is exalted, and so long as religion is its guide it will never rule unjustly; while the other receives help of protection and defence for the public good of the faithful.

37. Being moved, therefore, by these considerations, as We have exhorted rulers at other times, so still more earnestly We exhort them now, to concord and friendly feeling; and we are the first to stretch out Our hand to them with

fatherly benevolence, and to offer to them the help of Our supreme authority, a help which is the more necessary at this time when, in public opinion, the authority of rulers is wounded and enfeebled. Now that the minds of so many are inflamed with a reckless spirit of liberty, and men are wickedly endeavoring to get rid of every restraint of authority, however legitimate it may be, the public safety demands that both powers should unite their strength to avert the evils which are hanging, not only over the Church, but also over civil society.

38. But, while earnestly exhorting all to a friendly union of will, and beseeching God, the Prince of peace, to infuse a love of concord into all hearts, We cannot, venerable brothers, refrain from urging you more and more to fresh earnestness, and zeal, and watchfulness, though we know that these are already very great. With every effort and with all authority, strive, as much as you are able, to preserve whole and undefiled among the people committed to your charge the doctrine which Christ our Lord taught us; which the Apostles, the interpreters of the will of God, have handed down; and which the Catholic Church has herself scrupulously guarded, and commanded to be believed in all ages by the faithful of Christ.

39. Let special care be taken that the people be well instructed in the precepts of Christian wisdom, so that they may always remember that marriage was not instituted by the will of man, but, from the very beginning, by the authority and command of God; that it does not admit of plurality of wives or husbands; that Christ, the Author of the New Covenant, raised it from a rite of nature to be a sacrament, and gave to His Church legislative and judicial power with regard to the bond of union. On this point the very greatest care must be taken to instruct them, lest their minds should be led into error by the unsound conclusions of adversaries who desire that the Church should be deprived of that power.

40. In like manner, all ought to understand clearly that, if there be any union of a man and a woman among the faithful of Christ which is not a sacrament, such union has not the force and nature of a proper marriage; that, although contracted in accordance with the laws of the State, it cannot be more than a rite or custom introduced by the civil law. Further, the civil law can deal with and decide those matters alone which in the

civil order spring from marriage, and which cannot possibly exist, as is evident, unless there be a true and lawful cause of them, that is to say, the nuptial bond. It is of the greatest consequence to husband and wife that all these things should be known and well understood by them, in order that they may conform to the laws of the State, if there be no objection on the part of the Church; for the Church wishes the effects of marriage to be guarded in all possible ways, and that no harm may come to the children.

41. In the great confusion of opinions, however, which day by day is spreading more and more widely, it should further be known that no power can dissolve the bond of Christian marriage whenever this has been ratified and consummated; and that, of a consequence, those husbands and wives are guilty of a manifest crime who plan, for whatever reason, to be united in a second marriage before the first one has been ended by death. When, indeed, matters have come to such a pitch that it seems impossible for them to live together any longer, then the Church allows them to live apart, and strives at the same time to soften the evils of this separation by such remedies and helps as are suited to their condition; yet she never ceases to endeavor to bring about a reconciliation, and never despairs of doing so. But these are extreme cases; and they would seldom exist if men and women entered into the married state with proper dispositions, not influenced by passion, but entertaining right ideas of the duties of marriage and of its noble purpose; neither would they anticipate their marriage by a series of sins drawing down upon them the wrath of God.

42. To sum up all in a few words, there would be a calm and quiet constancy in marriage if married people would gather strength and life from the virtue of religion alone, which imparts to us resolution and fortitude; for religion would enable them to bear tranquilly and even gladly the trials of their state, such as, for instance, the faults that they discover in one another, the difference of temper and character, the weight of a mother's cares, the wearing anxiety about the education of children, reverses of fortune, and the sorrows of life.

43. Care also must be taken that they do not

easily enter into marriage with those who are not Catholics; for, when minds do not agree as to the observances of religion, it is scarcely possible to hope for agreement in other things. Other

reasons also proving that persons should turn with dread from such marriages are chiefly these: that they give occasion to forbidden association and communion in religious matters; endanger the faith of the Catholic partner; are a hindrance to the proper education of the children; and often lead to a mixing up of truth and falsehood, and to the belief that all religions are equally good.

44. Lastly, since We well know that none should be excluded from Our charity, We commend, venerable brothers, to your fidelity and piety those unhappy persons who, carried away by the heat of passion, and being utterly indifferent to their salvation, live wickedly together without the bond of lawful marriage. Let your utmost care be exercised in bringing such persons back to their duty; and, both by your own efforts and by those of good men who will consent to help you, strive by every means that they may see how wrongly they have acted; that they may do penance; and that they may be induced to enter into a lawful marriage according to the Catholic rite.

45. You will at once see, venerable brothers, that the doctrine and precepts in relation to Christian marriage, which We have thought good to communicate to you in this letter, tend no less to the preservation of civil society than to the everlasting salvation of souls. May God grant that, by reason of their gravity and importance, minds may everywhere be found docile and ready to obey them! For this end let us all suppliantly, with humble prayer, implore the help of the Blessed and Immaculate Virgin Mary, that, our hearts being quickened to the obedience of faith, she may show herself our mother and our helper. With equal earnestness let us ask the princes of the Apostles, Peter and Paul, the destroyers of heresies, the sowers of the seed of truth, to save the human race by their powerful patronage from the deluge of errors that is surging afresh. In the meantime, as an earnest of heavenly gifts, and a testimony of Our special benevolence, We grant to you all, venerable brothers, and to the people confided to your charge, from the depths of Our heart, the apostolic benediction.

Given at St. Peter's in Rome, the tenth day of February, 1880, the third year of Our pontificate.

LEO XIII

REFERENCES:

1. Eph. 1:9-10.

2. Matt 19:5-6.

3. Matt.l9:8.

4. Jerome Epist. 77, 3 (PL 22, 691).

5. Arnobius, Adversus Gentes, 4 (sic, perhaps l, 64).

6. Dionysius Halicarnassus, lib. ll, chs. 26-27 (see Roman

Antiquities, tr. E. Cary, Loeb Classical Library, Harvard

University Press, 1948, Vol. I, pp. 386-393).

7. John 2.

8. Matt. 19:9.

9. Trid., sess. xxiv, in principio (that is, Council of Trent,

Canones et decreta; the text is divided into sessions,

chapters, and canons, i.e., decrees).

10. Trid., sess. xxiv, cap. 1, De reformatione matrimonii.

11. Eph.5:25-32.

12. I Cor. 7:10-11.

13. 1 Cor. 7:39.

14. Eph. 5:32.

15. Heb. 13:4.

16. Eph. 2:19.

17. Catech. Rom., ch. 8.

18. Eph.5:23-24.

19. Eph. 6:4.

20. Acts 15:29.

21. 1 Cor. 5:5.

22. Gnostics: common name for several early sects claiming a

Christian knowledge (gnosis) higher than faith.

Manichaeans: disciples of the Persian Mani (or Manes, c.216-276) who taught that everything goes back to two

first principles, light and darkness, or good and evil.

Montanises: disciples of Montanus (in Phrygia, last third

of the second century), condemned marriage as a sinful

institution. Mormons: sect founded in 1830 by Joseph

Smith, which favored polygamy. Saint-Simonians:

disciples of the French philosopher Saint-Simon

(1760-1825) founder of a "new Christianity" based upon

science instead of faith. Phalansterians: members of a

phalanstery, that is, of a socialist community after the

principles of Charles Fourier (1772-1837). Communists:

supporters of a regime in which property belongs to the

body politic, each member being supposed to work according to his capacity and to receive according to his wants; communism is usually associated with the name of Karl Marx (1818-1893).

23. Cap. l, De conjug. serv. Corpus juris canonici, ed. Friedberg (Leipzig, 1884), Part 2, cols. 691-692.

24. Jerome, Epist. 77 (PL 22, 691).

25. Can. Interfectores and Canon Admonere, quaest. 2 Corpus juris canonici (Leipzig, 1879), Part 1, eols. 1152-1154.

26. Saus. 30, quaest. 3, cap. 3, De cognac. spirit. (op. cit., Part 1, col. 1101).

27. Cap. 8, De consang. et affin. (op. cit., Part 2, col. 703); cap 1 , De cognac. Iegali (col. 696).

28. Cap. 26, De spousal. (op. cit., Part 2, col. 670); cap. 13 (col. 665); cap. 15 (col. 666); cap. 29 (col. 671); De spon salibus et matrimonio et alibi.

29. Cap. 1, De convers. infid. (op. cit., Part 2, col. 587); cap. 5, 6, De eo qui duxit in marrim. (cols. 688-689).

30. Cap. 3, 5, 8, De spousal. et matr. (op. cit., Part 2, cols. 661, 663). Trid., sess. xxiv, cap. De reformatione matrimonii.

31. Cap. 7, De divort. (op. cit., Part 2, col. 722).

32. Maintain the self-sufficiency of the natural order.

33. Concerning Innocent III, see Corpus juris canonici, cap. 8, De divort., ed. cit., Part 2, col. 723. Innocent III refers to 1 Cor. 7:13. Concerning Honorius III, see cap. ii, De transact ., (op. cit., Part 2 col. 210).

34. Canones Apostolorum, 16 17, 18, ed. Fr. Lauchert, J. C. B. Mohr (Leipzig, 1896) p. 3.

35. Philosophumena (Oxford, 1851), i.e., Hippolytus, Refutation of All Heresies , 9, 12 (PG 16 3386D-3387A).

36. Epistola ad Polycarpum, cap. 5 (PG 5, 723-724).

37. Apolog . Maj ., 15 (PG 6, 349A, B).

38. Legal. pro Christian ., 32, 33 (PG 6, 963-968).

39. De coron. milit ., 13 (PL 2, 116).

40. De Aguirre, Conc. Hispan., Vol. 1, can. 11.

41. Harduin, Act. Conch., Vol. 1, can. 11.

42. Ibid., can. 16.

43. Ibid., can. 17.

44. Novel ., 137 (]ustinianus, Novellae, ed. C. E. Z. Lingenthal, Leipzig, 1881, Vol. 2, p. 206).

45. Fejer, Matrim. ex instit . Chris. (Pest, 1835).

46. Cap. 3, De ord. cogn . (Corpus juris canonici , ed. cit., Part 2, col. 276).

47. Cap. 3, De divort . (ed. cit., Part 2, col. 720).

48. Cap. 13, Qui filii sint legit. (ed. cit., Part 2, col. 716).

49. Trid., sess. xxiv, can. 4.

50. Ibid., can. 12.

51. Pius VI, Epist. ad episc. Lucion ., May 20, 1793; Pius VII, encycl. letter, Feb. 17, 1809, and constitution given July 19, 1817; Pius VIII, encycl. letter, May 29, 1829; Gregory XVI, constitution given August 15, 1832; Pius IX, address, Sept. 22, 1852.

52. Trid., less. xxiv, can. 5 7.

53. Council of Florence and instructions of Eugene IV to the Armenians Benedict XIV, constitution Etsi Pastoralis, May 6, 1742.

54. Cap. 7, De condit. appos. (Corpus juru canonici , ed. cit., Part 2, col. 684).

55.]erome, Epist. 69, ad Oceanum (PL 22, 657); Ambrose, Lib. 8 in cap. 16 Lucae, n. 5 (PL 15, 1857); Augustine, De

nuptiis , 1, 10 11 (PL 44, 420). Fifty years after the publication of Arcanum , Pope Pius Xl published his own

encyclical Casti Connubii (December 31 1930), which may be found translated, with notes and bibliography, in J. Husslein, S. J., Social Wellsprings, Vol. II, pp. 122-173; also in pamphlet form, translated by Canon G. D. Smith, Catholic Truth Society of London; Paulist Press, New York; with a discussion club outline by Gerald C. Treacey, S. J.; National Catholic Welfare Conference, Washington, 1939. These pontifical acts should be completed by two addresses given by Pope Pius XII (October 29, 1951, and November 26, 1951), English translation published in pamphlet form by the National Catholic Welfare Conference under the title, Moral Questions Affecting Married Life, with a discussion outline by Edgar Schmiedeler, O. S. B.

56. Aeterni Patris, above, pp. 38-39.

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